AS TO THE ADMISSIBILITY OF

Application No. 20652/92
by Ahmet DJAVIT AN
against Turkey

The European Commission of Human Rights sitting in private on 14 April 1998, the following members being present:

MM S. TRECHSEL, President
J.-C. GEUS
G. JÖRUNDSSON
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H. DANELIUS
Mrs G.H. THUNE
MM F. MARTINEZ
C.L. ROZAKIS
Mrs J. LIDDY
MM L. LOUCAIDES
M.A. NOWICKI
I. CABRAL BARRETO
N. BRATZA
I. BÉKÉS
J. MUCHA
D. SVÁBY
G. RESS
A. PERENIC
C. BÎRSAN
P. LORENZEN
K. HERNDL
E. BIELIUNAS
E.A. ALKEMA
M. VILA AMIGÓ
Mrs M. HION
MM R. NICOLINI
A. ARABADJIEV

Mr M. de SALVIA, Secretary to the Commission.

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 8 September 1992 by Ahmet DJAVIT AN against Turkey and registered on 18 September 1992 under file No. 20652/92;

Having regard to :

- the reports provided for in Rule 47 of the Rules of Procedure of the Commission;

- the observations submitted by the respondent Government on 1 July 1997 and the observations in reply submitted by the applicant on 30 September 1997;

Having deliberated;

Decides as follows:

THE FACTS

The applicant, a Cypriot national born in 1950, is a

paediatrician residing in Nicosia, north of the "green line". Before the Commission he is represented by Mr. Malcolm Shaw, a barrister practising in London.

The facts of the case, as they have been submitted by the parties, may be summarised as follows:

A. The particular circumstances of the case

In addition to being a critic of the Turkish Cypriot authorities and of the Turkish military presence in the northern part of Cyprus, which he qualifies as "occupation", the applicant is the "Turkish Cypriot Coordinator" of "the Movement for an Independent and Federal Cyprus", an unregistered association of Turkish and Greek Cypriots founded in 1989 in Nicosia. The movement has a Turkish Cypriot coordinating committee in the northern part of the island and a Greek Cypriot coordinating committee in the southern part. The purpose of this Movement is to develop close relations between the two communities. To this end, it organises bi-communal meetings of political, cultural, medical or social character.

In general, the applicant cannot obtain a permit from the Turkish and Turkish Cypriot authorities to visit the "buffer zone" or the southern part of the island. Thus, between 23 September 1989 and 3 October 1996, only 22 out of 124 requests for such permits were granted. One of the requests that were turned down concerned the UNFICYP (United Nations Forces in Cyprus) Spring Fair at the Nicosia International Airport in May 1992 and another a bi-communal medical seminar organised by UNHCR in June 1992. Moreover, in May 1992 the above-mentioned authorities refused to allow Greek Cypriots to attend a meeting organised by the applicant in the northern part of the island.

The applicant claims that there exists a decision by the cabinet of the "TRNC" prohibiting his contacts with Greek Cypriots. Reference to this decision is allegedly made in a letter dated 3 February 1992 by the "Health Minister of the TRNC" to the applicant, which reads as follows:

> "According to the information our Ministry received, you were informed by the Ministry of Foreign Affairs and Defence orally and this has been a decision of the government and we have nothing to add in our capacity as the Ministry."

On 7 May 1992 the applicant wrote to the Prime Minister of the "TRNC" requesting to be informed of the content of the cabinet decision referred to in the above-mentioned letter, but received no reply.

On 29 May 1992 he sent a letter of protest to the Foreign Minister of Turkey, which has also remained unanswered.

On 18 May 1994 the "Directorate of Consular and Minority Affairs of the Ministry of Foreign Affairs and Defence of the TRNC" informed the applicant that "the permission requested by (his) letter of 19 April 1994 was refused for security reasons, in the public interest and because (he) made propaganda against the state."

B. Applicant's previous application

On 13 May 1991 the applicant and four other Turkish Cypriots filed an application against Cyprus before the European Commission of Human Rights complaining about the restrictions of their freedom of movement. The Commission found that the Government of Cyprus "could not be held responsible under Article 1 of the Convention for the acts of Turkish Cypriot authorities in the north of Cyprus" and declared their application inadmissible (No. 18270/92, Ahmet Cavit AN and others v. Cyprus, Dec. 8.10.91, unpublished).

The applicant claims that the attitude of the Turkish and Turkish Cypriot authorities towards him has become even stricter following his first application to the Commission.

COMPLAINTS

1. The applicant complains under Articles 10 and 11 of the Convention that the Turkish and Turkish Cypriot authorities, by not allowing him to cross the "green line", prohibit him from exercising his right to freedom of assembly and association with the Greek Cypriots as well as his right to freedom of expression including the freedom to hold opinions and ideas and to receive and impart information.

2. The applicant complains under Article 13 of the Convention about the lack of effective domestic remedies to challenge the arbitrary refusal to allow him to cross the "green line" for the purpose of taking part in meetings organised in the southern part of the island.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 8 September 1992 and registered on 18 September 1992.

On 27 June 1994 the Commission decided to communicate the application to the respondent Government without requesting any observations.

On 8 April 1995 the Commission decided to adjourn the examination of the application pending delivery of the Court's judgment on the merits of the Loizidou v. Turkey case. The judgment was delivered on 18 December 1996 (cf. Reports 1996-IV).

On 23 January 1997 the Commission decided to request the respondent Government to submit observations on the admissibility and merits of the application.

On 2 April 1997 the respondent Government requested the Commission to adjourn the examination of the case until completion by the Court of its consideration of the issue under Article 50 of the Convention in the Loizidou v. Turkey case. On 18 April 1997 the Commission decided not to accede to the respondent Government's request and fixed a new time-limit for the submission of their observations.

The Government's written observations were submitted on 1 July 1997, after an extension of the second time-limit fixed for that purpose. The applicant replied on 30 September 1997.

THE LAW

1. The applicant complains under Articles 10 and 11 (Art. 10, 11) of the Convention that the Turkish and Turkish Cypriot authorities, by not allowing him to cross the "green line", prevent him from exercising his right to freedom of assembly and association with the Greek Cypriots as well as his right to freedom of expression including the freedom to hold opinions and ideas and to receive and impart information. He also complains under Article 13 (Art. 13) of the Convention about the lack of effective domestic remedies to challenge the arbitrary refusal to allow him to cross the "green line".

The provisions invoked by the applicant provide as follows:

Article 10 (Art. 10) of the Convention

"1. Everyone has the right to freedom of expression. This

right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers. ...

2. The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals, for the protection of the reputation or rights of others, for preventing the disclosure of information received in confidence, or for maintaining the authority and impartiality of the judiciary."

Article 11 (Art. 11) of the Convention

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. ..."

Article 13 (Art. 13) of the Convention

"Everyone whose rights and freedoms as set forth in this Convention are violated shall have an effective remedy before a national authority notwithstanding that the violation has been committed by persons acting in an official capacity."

2. The respondent Government submit that they are not responsible for the decisions of the "TRNC" preventing the applicant from crossing the "green line". Although the applicant alleges that it was the Turkish military authorities which prevented him from crossing this line, he himself confirms that all the applications for a permit he has lodged were addressed to the Turkish Cypriot authorities. Moreover, the Government submit that the control and day-to-day administration of the crossing gates of the "TRNC" belong to the authorities of the "TRNC" which are also responsible for issuing the relevant permits. Furthermore, it is the laws of the "TRNC" which apply to the matter in question. The applicant himself chose to protest to the "Prime Minister of the TRNC".

The respondent Government further contend that there is no military occupation of northern Cyprus by Turkey, but rather that there has been an evolution towards the creation of their own independent State by the Turkish Cypriot community in exercise of their right to self-determination. In this respect, the respondent Government refer in detail to the history of Cyprus since 1960 emphasising in particular:

(i) the bi-communal character of the 1960 Constitution and the obligation of Cyprus, under international treaty obligations guaranteed by the signatories of the 1960 Treaty of Guarantee, to maintain her independence, territorial integrity and the fundamental principles of the Constitution;

(ii) the alleged responsibility of the Greek Cypriot side for the breakdown of the 1960 constitutional arrangements in 1963 and the subsequent changing of basic principles of the Constitution;

(iii) the allegedly intolerable situation of enclaved Turkish Cypriots in the period between 1964 and 1974, which caused them to set up their own administration as from December 1967;

(iv) the fact that the Turkish intervention in July 1974 was preceded by a coup d'etat of Greek officers of the National Guard who pursued the aim of unification of Cyprus with Greece (Enosis);

(v) the contention that the Turkish military operation in 1974 was carried out in conformity with Article IV of the Treaty of Guarantee to protect the right of Turkish Cypriots;

(vi) the contention that the subsequent relocation of both the Turkish Cypriot and the Greek Cypriot communities in separate parts of the island was the result of agreements achieved in inter-communal talks held in Vienna in July/August 1975, these agreements being fully implemented on a voluntary basis under UN auspices, UN troops moving into the newly established buffer zone;

(vii) the alleged agreement achieved in 1977 and 1979 between the Turkish Cypriot and Greek Cypriot leaders for seeking a federal solution on the basis of a bi-communal and bi-zonal federation, a concept which it is contended is still valid as a basic guideline for the inter-communal talks;

(viii) the contention that the establishment of the "TRNC" as an independent State on 15 November 1983 was declared by the legitimate representative body of the Turkish Cypriots in exercise of their right to self-determination, and that this did not constitute secession as the bi-communal Republic of Cyprus had ceased to function due to the actions of the Greek Cypriot side since 1963;

(ix) the contention that the subsequent development of "TRNC" institutions was legitimate and in line with democratic principles and that it consolidated the statehood of the "TRNC" according to criteria accepted in international law;

(x) the opinion that, despite the fact that it has not been recognised de jure by any other State than Turkey, the "TRNC" exists de facto as an independent State exercising all branches of State power on its territory (in this connection the respondent Government refer to several decisions of English courts recognising that there was "an effective and autonomous administration in the North" and to the fact that Turkey, having recognised the "TRNC" de jure, does not claim for herself to exercise power in that area);

Finally, as regards the role of the Turkish forces in northern Cyprus, the respondent Government claim that these forces are there in a peace-keeping function at the request and with the consent of the "TRNC", that they act under the latter's authority and do not themselves exercise governmental power. It is claimed that their status is not essentially different from that of Greek military forces in southern Cyprus.

The Government draw further arguments from the Commission's Report of 8 July 1993 in Chrysostomos and Papachrysostomou v. Turkey (D.R. 86-A, p. 4) in which the Commission found that certain legal acts emanating from the "TRNC" had to be assumed to be legally valid acts under the Convention. According to the Government, this opinion remains controlling for the Commission notwithstanding the Court's Loizidou v. Turkey judgment of 18 December 1996 (Reports 1996-I) which, as the Government emphasise, binds only the parties in that case and has no broader legally-binding effect. In any event, the Government argue that the Loizidou v. Turkey judgment is ultra vires.

In the light of all the above, the respondent Government submit that Turkey has no accountability, control, jurisdiction or

responsibility in respect of the acts of the "TRNC" which constitute the basis of the applicant's complaints.

The applicant does not consider it necessary to comment on the general historical exegesis provided by the respondent Government, which in any event he does not accept. He refers in reply to the Court's Loizidou v. Turkey judgment of 18 December 1996 (supra) which he considers to be determinative as to certain crucial legal issues, as evidenced by the Commission's decision to adjourn the examination of his application pending its delivery. He also refers to the Commission's decision of 7 September 1996 in the fourth inter-State case (No. 25781/94 Cyprus v. Turkey, D.R. 86-A, p. 104) which is in line with the approach of the Court.

The applicant recalls that in its Loizidou v. Turkey judgment of 18 December 1996 the Court found that Turkey exercises "effective overall control" in northern Cyprus, which includes not only direct actions and omissions of the Turkish authorities but also actions and omissions of the "TRNC". According to the Court, what matters is "effective overall control" and not "the actual exercise of control", as the respondent Government contend. The notion of "actual exercise of control" was rejected by the Commission itself in its Chrysostomos and Papachrysostomou v. Turkey Report, when it linked the question of imputability to the Turkish troops' being capable to intervene (supra, p. 27, paras. 99-102). The applicant submits that the respondent Government cannot use the proceedings before the Commission in the present case to appeal against the Loizidou v. Turkey judgment of the Court.

The applicant also refers to the Commission's finding in its Chrysostomos and Papachrysostomou v. Turkey Report that the actual control of the border area is exercised by Turkish armed forces. Moreover, he recalls that in its admissibility decision in the fourth Cyprus v. Turkey case the Commission found that the applicant Government had sufficiently demonstrated the possibility of a direct or indirect involvement of Turkish authorities, inter alia, in the restriction of freedom of movement of Turkish Cypriots, including the applicant. Finally, he points out that, in addition to having protested to the Turkish Cypriot authorities, on 29 May 1992 he sent a letter to the Foreign Minister of Turkey.

The Commission recalls that the Court in its Loizidou v. Turkey judgment of 18 December 1996 found that

> "(i)t is not necessary to determine whether, as the applicant and the Government of Cyprus have suggested, Turkey actually exercises detailed control over the policies and actions of the authorities of the 'TRNC'. It is obvious from the large number of troops engaged in active duties in northern Cyprus that her army exercises effective overall control over that part of the island. Such control, according to the relevant test and in the circumstances of the case, entails her responsibility for the policies and actions of the 'TRNC'. Those affected by such policies or actions therefore come within the 'jurisdiction' of Turkey for the purposes of Article 1 (Art. 1) of the Convention. Her obligation to secure to the applicant the rights and freedoms set out in the Convention therefore extends to the northern part of Cyprus" (supra, pp. 2235-2236, para. 56).

Moreover, the Commission notes that underlying the applicant's complaints is his inability to cross the "green line", an area over which the Commission has already found that the Turkish armed forces have actual control (Chrysostomos and Papachrysostomou v. Turkey Report, supra, p. 4, para. 99). It follows that the acts complained of are imputable to Turkey. As a result, the Commission considers that it cannot reject the application as inadmissible ratione personae.

3. The Commission will then examine whether the application has been lodged within the six-month time-limit provided for under Article 26 (Art. 26) of the Convention. The Commission notes in this connection that the applicant complains about the general effect which the refusal of the Turkish and Turkish Cypriot authorities to allow him to cross the "green line" has had on his enjoyment of several Convention rights. However, the Commission cannot lose sight of the fact that in reality the applicant complains about a series of incidents some of which occurred more than six months before the lodging of the present application on 8 September 1992.

Under Article 26 (Art. 26) of the Convention the Commission may only deal with a matter within a period of six months from the date on which the final decision was taken. As a result, the Commission considers that it must declare inadmissible under Article 27 para. 3 (Art. 27-3) of the Convention the part of the application which relates to the period before 8 March 1992.

4. Moreover, the Commission notes that the respondent Government argue that the applicant has not exhausted domestic remedies. They point out that the applicant is a Turkish Cypriot who lives in the "TRNC" and to whom all effective remedies within the judicial and administrative system of the "TRNC" are accessible.

The Government stress in this connection that the "TRNC" is endowed with a Constitution based on the principles of the rule of law and supremacy of the Constitution (Articles 1 and 7), which provides for an independent judiciary (Articles 136, 137, 141 and 150) and for effective judicial control of executive and legislative activity (Articles 146-148 and 152). Article 17 relating to fair and public hearing is similar to Article 6 (Art. 6) of the Convention and prohibits the establishment of judicial committees or special courts under any name whatsoever. According to the Constitution, no act of the administration can be excluded from judicial review. Article 152 provides for judicial review of administrative action on the grounds of excess and/or abuse of power, illegality and unconstitutionality. There is also provision for judicial review of legislation by way of reference to the Supreme Constitutional Court (Article 148) and institution of proceedings for annulment of legislation and subsidiary legislation (Article 147).

The respondent Government claim that the existence of an effective and independent judicial system in the "TRNC" has also been recognised in the Commission's own case-law. They refer again to the Commission's Chrysostomos and Papachrysostomou v. Turkey Report (supra). According to the Government, in paragraph 174 of that report the Commission recognised the existence of effective remedies before the national authorities in northern Cyprus when it noted that the applicants in that case had been brought before judicial authorities which they refused to recognise, and that they had not wished to avail themselves of such remedies as might have been available to them with regard to the circumstances of their arrest by Turkish Cypriot police.

In this connection, the respondent Government submit a list of cases brought by Greek Cypriots in Turkish Cypriot courts including inter alia cases relating to trespass by other persons and unlawful cultivation of land belonging to Greek Cypriot plaintiffs in the Karpas area. Such claims were accepted by the competent "TRNC" courts.

In the Government's view, the applicant could have used the remedies which exist in the "TRNC". Moreover, he could have complained to the Attorney General of the "TRNC". Since he did not do so, he has failed to comply with Article 26 (Art. 26) of the Convention.

The applicant submits first that the remedies under the "TRNC" Constitution are illegal in that they emanate from an illegal entity established pursuant to an illegal invasion and occupation by Turkey.

Secondly, he points out that it is the Turkish authorities that have the ultimate control and responsibility in northern Cyprus. They also have effective control over border crossings. As a result and in the light of the Loizidou v. Turkey judgment of the Court, "TRNC"-based remedies cannot in principle be adequate and effective. In any event, the decisions of the Turkish Cypriot courts are not binding on the Turkish military authorities. The decisions to which the respondent Government refer revolve around conflicts of private law rights and do not concern issues involving directly the Turkish authorities.

Thirdly, the applicant submits that there is no law in the northern part of Cyprus regulating contacts between that part and the southern part. Decisions affecting him have not been communicated to him in writing and he has been the subject of veiled threats. As a result, he has been unable to discover any proper legal basis for his treatment. In any event, when an application for a permit to cross the "green line" is rejected, no written reply is issued. The police at the control point, to whom the authorities send a circular with the list of persons permitted to cross over, simply do not permit the passage. Moreover, the Turkish Cypriot courts are likely to treat the freedom of movement between the two parts of the island as a political matter which is not judicially reviewable.

Finally, the applicant argues that the arbitrary and erratic practices in the matter of permits for crossing over to the southern part fall within the administrative-practice exception to the exhaustion of domestic remedies rule.

The Commission recalls that, according to the Convention organs' case-law,

> "(i)t is incumbent on the Government claiming non-exhaustion to satisfy the Court that the remedy was an effective one available in theory and in practice at the relevant time, that is to say, that it was accessible, was one which was capable of providing redress in respect of the applicant's complaints and offered reasonable prospects of success" (Eur. Court HR, Akdivar and others v. Turkey judgment of 16 September 1996, Reports 1996-IV, no. 15, p. 1211, para. 68).

The Commission notes that the only remedies which the respondent Government claim that the applicant should have exhausted are remedies before bodies set up by the "TRNC". However, the Commission recalls that in its admissibility decision in the fourth inter-State case (No. 25781/94 Cyprus v. Turkey, supra) it considered that the question of whether "TRNC" courts are capable of providing redress, inter alia, in respect of complaints by Turkish Cypriots living in the northern part of Cyprus could only be determined at the merits stage of the proceedings. The Commission considers that it must reach the same conclusion in the circumstances of the present case. As a result, the Commission decides to reserve the final determination of the question of whether the applicant is required to pursue his complaints further before bodies established by the "TRNC" for a later stage in the proceedings.

It follows that the part of the application which has been submitted within the six-month time-limit cannot be rejected as inadmissible under Article 27 para. 3 (Art. 27-3) of the Convention on the ground that the applicant has not exhausted domestic remedies.

5. As regards the substance of the complaints, the Government argue that they concern freedom of movement. In their view, the applicant has failed to demonstrate how the alleged instances of restriction on his movement have affected his freedom of expression and association, given the nature of the meetings he wished to attend, namely a Spring Fair and a bi-communal medical seminar. They also submit that the applicant

cannot complain on behalf of the Greek Cypriots who were allegedly prevented from attending the meeting he had organised in the northern part of the island. Moreover, the Government argue that the applicant has exercised his freedom of expression through the media and other means available to him in the "TRNC" and elsewhere. In any event, the exercise of the rights invoked by the applicant is subject to restrictions under the second paragraph of the relevant provisions of the Convention.

The applicant submits that he does not complain of restrictions of freedom of movement as such. The applicant is seeking to assert his rights to communicate his ideas and appropriate information to those on the island of Cyprus who share his aims of a peaceful resolution of the problems of the island and to receive similar ideas and information. In this respect, his case is analogous to that of Loizidou v. Turkey where the issue of freedom of movement was considered by the Court to be a peripheral aspect of the core complaint concerning the right to property.

In the circumstances of the current situation in Cyprus, the applicant feels that it is only by meetings of Turkish and Greek Cypriots that ideas for a peaceful political settlement can be truly imparted, received and exchanged as envisaged by Article 10 (Art. 10) of the Convention. Such meetings cannot be held in the northern part of Cyprus. He also submits that Article 11 (Art. 11) of the Convention protects inter alia the gathering together of persons. Moreover, the term "association" has an autonomous meaning. It requires a minimum of organisation and stability and the Movement for an Independent and Federal Cyprus fulfils these criteria.

The applicant contends that by not allowing him to cross over to the southern part, the authorities for which the respondent Government are responsible have interfered with these rights. However, there was no law regulating this interference. The Government have made no effort to indicate the grounds on which such an interference may be justified. Nor have they shown it to be necessary in a democratic society. It follows that Articles 10 and 11 (Art. 10, 11) of the Convention have been violated. Moreover, for the reasons already set forth, the applicant considers that he has no effective remedy in respect of these violations.

The Commission, in the light of the parties' observations, considers that the part of the application which has been submitted within the six-month time-limit raises serious questions of fact and law which are of such complexity that their determination should depend on an examination of the merits. This part of the application cannot, therefore, be regarded as being manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention, and no other ground for declaring it inadmissible has been established.

For these reasons, the Commission, unanimously,

DECLARES INADMISSIBLE the application insofar as it concerns the refusal to allow the applicant to cross the "green line" before 8 March 1992;

DECLARES ADMISSIBLE, without prejudging the merits, the remainder of the application.

M. de SALVIA	S. TRECHSEL
Secretary	President
to the Commission	of the Commission